20STCV29458 20STCV29458

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-09-03

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C511%2C09%2F03%2F2026

Source SHA-256: d8b4f77b52b9f1df53b171858fc7fe04edeb640b398b77db54e7316a17271aaf

Case Number: 20STCV29458 Hearing Date: September 3, 2026 Dept: 511

Tentative Ruling

Judge Upinder S. Kalra, Department 511

HEARING DATE: September 3, 2026

CASE NAME: Steven Roth v. Richard M. Behfarin

CASE NO.: 20STCV29458

MOTION FOR ASSIGNMENT ORDER

MOVING PARTY: Plaintiff/Judgment Creditor Steven Roth

RESPONDING PARTY(S): Defendant/Judgment Debtor Richard Behfarin

REQUESTED RELIEF:

1. An order for judgment debtor Richard M. Behfarin to assign to Judgment Creditor the insurance policy loan value of Prudential Life Insurance Policy number V0 0003 712 and all right to the value of loan payment thereunder minus the

exemption of $13,975.00.

TENTATIVE RULING:

1. Motion
for assignment order is GRANTED, as modified;

2. Judgment
Debtor Richard M. Behfarin is to assign to Judgment Creditor Steven Roth the insurance policy loan value of Prudential Life Insurance Policy number V0 0003 712 and all right to the value of loan payment thereunder minus the exemption of $17,525.00.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On May 30, 2025,¿the court issued its Judgment on Final
Statement of Decision.¿

¿

On July 21, 2025, Plaintiff filed a Notice of Entry of
Judgment.¿

¿

On July 24, 2025, Plaintiff filed a¿Memorandum of
Costs.¿

¿

On August 12, 2025, Defendant¿timely¿filed a Motion to Tax
Costs which the court DENIED.

On February 5, 2026, Plaintiff filed applications and order
for appearance and examination of third parties Jack Behfarin and Nahid
Nazarian Behfarin which the court GRANTED.

On April 13, 2026, Defendant filed a motion for protective
order on the third-party examinations which the court DENIED.

On July 8, 2026, Plaintiff filed the instant motion for assignment order.

On July 21, 2026, the court, on its own motion, advanced the hearing date on the motion for assignment order to September 3, 2026.

On August 31, 2026, Defendant filed an untimely opposition.[1]

LEGAL STANDARD:

Code of Civil Procedure (CCP) § 708.510(a) states, in relevant part:¿¿

¿¿

(a) Except as otherwise provided by law, upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor or to a receiver appointed pursuant to Article 7 (commencing with Section 708.610) all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to the following types of payments:¿¿

¿¿

(1) Wages due from the federal government that are not subject to withholding under¿an earnings¿withholding order.¿¿

(2) Rents.¿¿

(3) Commissions.¿¿¿

(4) Royalties.¿¿

(5) Payments due¿from¿a patent or copyright.¿¿

(6) Insurance policy loan value.¿¿¿

¿¿

CCP § 708.510(c), further
provides:¿¿¿

¿¿

[I]n¿determining¿whether to order an assignment or the
amount of an assignment¿pursuant to¿subdivision (a), the court may take into
consideration all relevant factors, including the following:¿¿

¿¿

(1) The reasonable requirements of a judgment debtor who is
a natural person and of persons supported in whole or in part by the judgment
debtor.¿¿

(2) Payments the judgment
debtor¿is required to¿make or that are deducted in satisfaction of other
judgments and wage assignments, including earnings assignment orders for
support.¿¿

(3) The amount¿remaining¿due on
the money judgment.¿¿

(4) The amount being or to be
received in satisfaction of the right to payment that may be assigned.¿¿

¿¿

Construing all the applicable
statutes together, it seems clear that the "assignment order" contemplated by
Code of Civil Procedure § 708.510,¿et
seq.¿must include a court order that assigns a right to payment outright
(not simply an order directing the judgment debtor to do so).¿¿¿

¿¿

The¿court may also issue "an order restraining the judgment
debtor from assigning or otherwise disposing of the right to payment that is
sought to be assigned" "upon a showing of need for the order." (CCP §

708.520(a), (b).)¿

ANALYSIS:

Plaintiff/Judgment Creditor contends relief is warranted
because the statute allows them to pursuant the insurance policy loan value
and, based on investigation, it appears this is Judgment Debtor's only asset
subject to execution.

Defendant/Judgment Debtor argues Plaintiff utilized an
outdated exemption amount and that the court should exercise its discretion not
to assign the remaining loan value because it risks forfeiting the policy
altogether due to precarious financial ability to continue paying premiums.

"Unmatured [life insurance] policies are not subject to
collection efforts" by a judgment creditor "except insofar as they have loan
value." (Bagby v. Davis (2026) 118
Cal.App.5th 652, 661.) "[A] creditor who wants to collect on that loan value .
. . must instead obtain an assignment order." (Ibid.) A policy's loan value "shall be equivalent to the cash
surrender value of the policy . . . ." (Ins. Code § 1236.)

Here, an assignment order is warranted. First, there is a
Judgment of $144,613.78 in Plaintiff's favor. (Declaration of Lisa Spiwak
(Spiwak Decl.) at 6:8-9.) Second, Defendant has not made any payments towards
the Judgment. (Id. at 6:12-13.)
Third, Defendant is the policy owner and beneficiary of Prudential Life
Insurance Policy number V0 003 712. (Id.
at 6:14-17.) This policy has a loan value of $52,781.62 as of March 31, 2026. (Ibid.; see also Exhibit 1.) Fourth,
Plaintiff believes Defendant has no other assets subject to immediate execution
to satisfy the Judgment.[2]
(Id. at 6:18-20.) Taken together, the
factors weigh in favor of an assignment order.

Defendant, in turn, did not
demonstrate that an assignment order is inappropriate. Notably absent is any
evidence supporting his argument that the loan policy value is strictly
necessary to support his family or to prevent "catastrophic policy lapse." Practically
speaking, the court cannot evaluate Defendant's contentions without such
evidence. (See California Coastal Com. v.
Allen (2008) 167 Cal.App.4th 322, 331 [noting that the judgment debtor

provided argument, not evidence, supporting homestead exemption.]) But there is more.

The entire loan policy value is
not subject to assignment. Plaintiff correctly points out that the statute provides an exemption of $13,975. (CCP § 704.100(b).) However, Defendant also correctly points out that CCP § 703.150(b) and (d) increased the exemption. The current exemption for the aggregate loan value of unmatured life insurance policies is $17,525. (Cal. Judicial Council form EJ-156 [Current Dollar Amounts of Exemptions From Enforcement of Judgments] (Rec. July 20, 2026).) As noted above, the current policy loan value is $52,781.62. (Spiwak Decl. at 6:14-17, Exhibit 1.) Subtracting the exemption amount of $17,525 leaves $35,256.62 subject to assignment.

Accordingly, the court GRANTS
Plaintiff's motion for assignment order, as modified.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion
for assignment order is GRANTED, as modified;

2. Judgment
Debtor Richard M. Behfarin is to assign to Judgment Creditor Steven Roth the insurance policy loan value of Prudential Life Insurance Policy number V0 0003 712 and all right to the value of loan payment thereunder minus the exemption of $17,525.00.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 3, 2026 ___________________________________ Upinder S. Kalra

Judge
of the Superior Court

[1]
The court exercises its discretion to consider the late-filed papers. (Cal. Rules of Court, rule 3.1300(d) [“No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late-filed paper, the minutes or order must so indicate”].)

[2]
The court infers that Plaintiff’s “information and belief” is based on the various debtor examinations he conducted in this matter.